

Comprehensive Legal Analysis and Strategic Defense Report:

Commonwealth v. Anne Louise Ulmer

I. Introduction and Case Overview

The legal matter of *Commonwealth of Pennsylvania v. Anne Louise Ulmer* (Docket No. MJ-14101-CR-0000631-2025) represents a confluence of complex evidentiary, procedural, and physiological issues within the realm of Pennsylvania DUI jurisprudence. This report provides an exhaustive analysis of the charges, the factual predicates of the traffic stop and subsequent arrest, and the available defenses, specifically tailored to the unique interplay between the defendant's alleged medical condition (a broken ankle) and the procedural requirements of chemical testing.

The case involves a traffic stop initiated by the Pennsylvania State Police (PSP) on October 26, 2025, in Uniontown City, Fayette County. The defendant, Anne Louise Ulmer, was subsequently charged with four specific offenses under Title 75 (The Vehicle Code) of the Pennsylvania Consolidated Statutes. The defense of this matter requires a granular understanding of the "momentary and minor" doctrine regarding lane violations, the "momentary flash" doctrine regarding high beams, the evidentiary limitations of Horizontal Gaze Nystagmus (HGN) testing in the absence of other field sobriety tests, and the burden-shifting framework required to establish a medical inability defense to a chemical test refusal.

1.1 Procedural Status and Charges

As indicated by the docket sheet¹ and court summary¹, the case is currently in the pre-trial phase, with a Preliminary Hearing scheduled before Magisterial District Judge Jason A. Cox. The charges filed against Ms. Ulmer are as follows:

- **Count 1: 75 Pa.C.S. § 3802(a)(1) – DUI: General Impairment/Incapable of Safely Driving.** Graded as a Misdemeanor (M). This subsection criminalizes the operation of a vehicle when the operator is rendered incapable of safely driving due to the consumption of alcohol. It is distinct from the per se offenses (such as § 3802(a)(2) or (c)) in that it does not require proof of a specific blood alcohol concentration (BAC). Rather, it relies on the totality of the circumstances, including driving behavior, physical appearance, and performance on field sobriety tests.²
- **Count 2: 75 Pa.C.S. § 3111(a) – Obedience to Traffic-Control Devices.** Graded as a Summary Offense (S). This charge mandates that drivers obey the instructions of any applicable official traffic-control device. In the context of this case, it appears to be the charging vehicle for the alleged lane violations.³
- **Count 3: 75 Pa.C.S. § 4306(a) – Use of Multiple-Beam Road Lighting Equipment.**

Graded as a Summary Offense (S). This statute requires drivers to use low beam headlights when approaching an oncoming vehicle within 500 feet.⁴

- **Count 4: 75 Pa.C.S. § 6308(a) – Investigation by Police Officers: Duty of Operator.** Graded as a Summary Offense (S). This section requires an operator to stop upon police signal and exhibit a driver's license, registration, and proof of financial responsibility upon request.⁵

1.2 The Factual Nexus: Injury, Investigation, and Refusal

The analytical core of this report addresses the specific factual matrix presented by the user: a DUI arrest where standard psychomotor field sobriety tests (Walk-and-Turn, One-Leg Stand) were likely precluded or compromised by the defendant's claim of a broken ankle. Consequently, the arresting officer's determination of probable cause appears to rely heavily on the Horizontal Gaze Nystagmus (HGN) test and observations of the vehicle in motion (high beams and lane straddling). Furthermore, the interaction culminated in a "refusal/inability" to complete breath tests, a circumstance that triggers significant administrative and evidentiary consequences under Pennsylvania's Implied Consent Law.

The convergence of these factors creates distinct legal battlegrounds:

1. **The Stop:** Was the initial detention for high beams and lane straddling supported by the requisite probable cause, or does it fall within the "momentary and minor" exceptions established by appellate courts?
2. **The Arrest:** Did the officer possess probable cause to arrest for DUI when the "broken ankle" necessitated the exclusion of the primary psychomotor tests, forcing reliance on the scientifically complex HGN test?
3. **The Trial Evidence:** Can the Commonwealth introduce HGN results at trial without expert testimony, given the precedent set in *Commonwealth v. Stringer*?
4. **The Refusal:** Can the defense successfully argue that the "refusal" was actually a "medical inability" caused by the physiological stress of the injury, thereby negating the consciousness of guilt inference?

This report proceeds by dissecting each of these legal issues, citing controlling Pennsylvania authority and synthesizing arguments for defense counsel.

II. Constitutional Analysis of the Traffic Stop

The validity of the initial traffic stop is the threshold issue in any DUI litigation. If the stop violates the Fourth Amendment of the U.S. Constitution or the enhanced protections of Article I, Section 8 of the Pennsylvania Constitution, all subsequent evidence—including the HGN results, the defendant's statements, and the alleged refusal—must be suppressed as fruit of the poisonous tree. In Pennsylvania, the legality of a traffic stop turns on the specific nature of

the violation alleged and the quantum of cause possessed by the officer.

2.1 The *Salter* Standard: Probable Cause vs. Reasonable Suspicion

To determine whether the stop of Ms. Ulmer was lawful, one must first identify the correct constitutional standard. Under 75 Pa.C.S. § 6308(b), a police officer is authorized to stop a vehicle if they have "reasonable suspicion" that a violation of the Vehicle Code is occurring. However, the Pennsylvania Superior Court, in a line of cases including *Commonwealth v. Feczko*, 10 A.3d 1285 (Pa. Super. 2010), and *Commonwealth v. Salter*, 121 A.3d 987 (Pa. Super. 2015), has judicially narrowed this authority.⁶

The courts differentiate between **investigable** and **non-investigable** offenses:

- **Investigable Offenses:** For violations where the stop itself serves an investigatory purpose—essentially, where the officer can expect to learn more about the violation by interacting with the driver—the standard is **reasonable suspicion**. The paradigmatic example is a stop for suspected DUI based on erratic driving. The stop allows the officer to observe the driver's eyes, breath, and dexterity to confirm or dispel the suspicion of intoxication.
- **Non-Investigable Offenses:** For violations that are complete the moment the officer observes them, and for which a stop yields no further evidence of the violation itself, the standard is **probable cause**. Probable cause requires facts and circumstances sufficient to warrant a prudent person in believing that the offense has been committed.

In *Commonwealth v. Ulmer*, the stated bases for the stop are violations of § 4306 (high beams) and § 3111/3309 (lane violations). Pennsylvania courts generally categorize these as **non-investigable offenses**. Once the officer sees the high beams or the lane deviation, the summary offense is observed and complete. Stopping the driver provides no further evidence regarding the position of the beams or the car's position on the road. Therefore, the Commonwealth must demonstrate that the officer possessed **probable cause**—a higher bar than reasonable suspicion—to initiate the stop of Ms. Ulmer.⁸

2.2 Analysis of the High Beam Violation (75 Pa.C.S. § 4306)

The defendant is charged with violating Section 4306(a), which mandates that "whenever the driver of a vehicle approaches an oncoming vehicle within 500 feet, the driver shall use the low beam of light".⁴ The defense strategy here must focus on the duration and context of the high beam usage.

2.2.1 The "Momentary Flash" Doctrine: *Commonwealth v. Kostishak*

A critical defense precedent is found in the reasoning of *Commonwealth v. Kostishak*, 2017 WL 10604620 (Lycoming C.P. 2017). In *Kostishak*, a Pennsylvania trial court suppressed evidence from a traffic stop where the defendant flashed his high beams for approximately one second at a distance of 100 feet from the officer. The court held that this momentary activation did

not provide probable cause for a violation of § 4306.

The court's reasoning relied on the statutory exception found in § 4306(c)(2), which states: "Nothing in this section shall limit drivers from flashing high beams at oncoming vehicles as a warning of roadway emergencies or other dangerous or hazardous conditions ahead".⁴ The court in *Kostishak* reasoned that a prudent officer must consider whether a brief flash is an attempt to communicate a warning—a lawful act—rather than a failure to dim headlights. Furthermore, the court noted that drivers often flash beams to signal to oncoming drivers that *their* high beams are on (even if the signaler is mistaken). Because the statute explicitly permits flashing for warnings, a momentary flash is ambiguous and insufficient to establish probable cause of a violation.¹⁰

If the affidavit in *Ulmer* describes the high beam usage as a "flash" or a brief activation, the defense should vigorously argue under *Kostishak* that the officer lacked probable cause because the conduct was consistent with the statutory exception for warning signals.

2.2.2 The Sustained Usage Distinction: *Commonwealth v. Bush*

The Commonwealth will likely counter with *Commonwealth v. Bush*, 166 A.3d 1278 (Pa. Super. 2017). In *Bush*, the Superior Court upheld a traffic stop where the defendant activated his high beams while approaching a police cruiser and **maintained them** as he passed the vehicle. The appellant in *Bush* argued that the officer did not testify to being "blinded" or having his vision impaired, and thus the statute was not violated. The Superior Court rejected this, holding that the text of § 4306(a) is strict: it requires the use of low beams within 500 feet, regardless of the actual effect on the oncoming driver.⁸

The distinction between *Bush* and *Kostishak* lies in the duration. *Bush* involved sustained use; *Kostishak* involved a momentary flash. Defense counsel must carefully examine the dashcam footage to classify Ms. Ulmer's usage. If the high beams were engaged and remained engaged, *Bush* presents a formidable hurdle. If they were flashed, *Kostishak* provides a pathway to suppression.

2.3 Analysis of Lane Deviations (75 Pa.C.S. § 3111 vs. § 3309)

The charging document lists 75 Pa.C.S. § 3111(a) (Obedience to Traffic-Control Devices) rather than the specific lane-keeping statute, 75 Pa.C.S. § 3309(1). This charging decision is legally significant and may reflect a strategic attempt by the officer to bypass the "safety hazard" requirement inherent in § 3309 jurisprudence.

2.3.1 The *Gleason* Standard: Protection for Minor Deviations

The seminal case regarding lane violations in Pennsylvania is *Commonwealth v. Gleason*, 785 A.2d 983 (Pa. 2001). In *Gleason*, the Pennsylvania Supreme Court invalidated a traffic stop where the defendant crossed the solid white fog line by six to eight inches for a second or two over a quarter-mile stretch on a deserted road. The Court held that § 3309(1) requires a

vehicle to be driven "as nearly as practicable entirely within a single lane." This language acknowledges that minor, momentary deviations are inevitable and do not inherently constitute a violation absent a safety hazard.¹²

Under *Gleason*, if Ms. Ulmer merely drifted onto or slightly over a white lane divider or fog line without endangering other traffic, the officer lacked probable cause for the stop. The fact that the officer charged § 3111 (failure to obey the painted lines) rather than § 3309 does not eviscerate the *Gleason* protection. Courts look to the underlying conduct, not just the citation written. If the conduct was "momentary and minor" straddling of a lane divider, *Gleason* suggests no crime occurred.¹⁵

2.3.2 The *Enick* Exception: The Double Yellow Line

The defense analysis must pivot sharply, however, if the "straddling" involved the center double yellow line. In *Commonwealth v. Enick*, 70 A.3d 843 (Pa. Super. 2013), the Superior Court distinguished *Gleason*. The court held that crossing the **double yellow center line** creates an inherent safety hazard because it places the vehicle in the path of opposing traffic. The court ruled that even a single instance of crossing the double yellow line constitutes probable cause for a violation of § 3301 (Driving on Right Side of Roadway) or § 3309, regardless of whether other cars were immediately present to take evasive action.¹⁶

Key Distinction: *Gleason* applies to fog lines and same-direction lane dividers where no hazard is created. *Enick* applies to center lines where the hazard is presumed.

- **Application to Ulmer:** The user query mentions "straddling lanes." Defense counsel must determine *which* lanes.
 - If Ulmer straddled the **white line** between two westbound lanes or the fog line, *Gleason* controls. The defense can argue the deviation was de minimis.
 - If Ulmer straddled the **double yellow line**, *Enick* controls, and the stop will likely be upheld as supported by probable cause.

2.3.3 The Charging of § 3111 (Traffic-Control Devices)

The use of § 3111 to penalize lane deviations is a common police tactic to avoid the "as nearly as practicable" language of § 3309. However, § 3111 generally applies to specific instructions like "No Left Turn" signs or red lights. In *Commonwealth v. Sands*, the court analyzed whether a stop based on § 3111 could be justified when the underlying conduct was merely weaving. Defense counsel should argue that applying § 3111 to minor lane weaving renders the specific protections of § 3309's "practicability" clause meaningless, violating rules of statutory construction.¹⁷

Table 1: Comparative Analysis of Traffic Stop Precedents

Case Citation	Factual Scenario	Legal Holding	Relevance to
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			Ulmer
<i>Com. v. Gleason</i> , 785 A.2d 983 (Pa. 2001)	Driver crossed white fog line by 6-8 inches for a few seconds on a deserted road.	Suppressed. Violation of § 3309 require more than momentary/minor deviation; must show safety hazard.	Primary defense if Ulmer's lane straddling was minor and involved white lines/fog lines.
<i>Com. v. Enick</i> , 70 A.3d 843 (Pa. Super. 2013)	Driver crossed double yellow center line once.	Upheld. Crossing center line is inherently dangerous; provides probable cause for § 3301/3309 violation.	Harmful precedent if Ulmer crossed the center line. Distinguishes <i>Gleason</i> .
<i>Com. v. Kostishak</i> , 2017 WL 10604620	Driver flashed high beams for 1 second at 100 ft distance.	Suppressed. Momentary flash is consistent with statutory exception for warning signals (§ 4306(c)).	Primary defense if high beam usage was a brief flash rather than sustained use.
<i>Com. v. Bush</i> , 166 A.3d 1278 (Pa. Super. 2017)	Driver activated high beams and kept them on while passing police.	Upheld. Sustained use violates § 4306; officer need not be "blinded" to establish PC.	Harmful precedent if Ulmer's high beams were left on continuously.

III. Probable Cause to Arrest and the Impact of Injury

Assuming the Commonwealth survives the suppression challenge regarding the stop, the next constitutional hurdle is the legality of the arrest. To arrest Ms. Ulmer for DUI, the officer needed probable cause to believe she was driving while impaired. In a typical case, this belief is substantiated by the "Totality of the Circumstances," heavily weighted by performance on Standardized Field Sobriety Tests (SFSTs). In *Ulmer*, the "broken ankle" fundamentally alters

this totality.

3.1 The Invalidity of Psychomotor Tests

The National Highway Traffic Safety Administration (NHTSA) establishes the protocols for SFSTs. The three standardized tests are Horizontal Gaze Nystagmus (HGN), Walk-and-Turn (WAT), and One-Leg Stand (OLS). NHTSA manuals explicitly warn that the **Walk-and-Turn** and **One-Leg Stand** tests are validity-contingent on the subject being ambulatory and free from leg injuries.¹⁹

For a subject with a broken ankle:

1. **Medical Invalidity:** Performing balancing tests on a fractured limb is medically contra-indicated and yields scientifically invalid results. Pain, instability, and guarding behaviors will mimic the "clues" of intoxication (swaying, using arms for balance, putting foot down).
2. **Officer Conduct:** If the officer attempted to administer these tests despite being informed of the injury, the results should be suppressed as unreliable and prejudicial. If the officer correctly declined to administer them, the evidentiary "totality" is significantly reduced.

This leaves the officer with a truncated investigation: the HGN test and general observations (odor, speech, appearance).

3.2 HGN Evidence at the Preliminary/Suppression Stage (*Weaver*)

Can an arrest be supported by HGN alone? This question was directly addressed by the Pennsylvania Superior Court in *Commonwealth v. Weaver*, 76 A.3d 562 (Pa. Super. 2013).

In *Weaver*, the appellant argued that the officer lacked probable cause to arrest because the HGN results—the primary basis for the arrest—were not supported by the strict scientific foundation required for trial evidence. The Superior Court rejected this argument. The court held that **HGN results are admissible at preliminary and suppression hearings** to determine probable cause, even without the expert testimony required at trial. The court reasoned that the evidentiary burden for probable cause (a reasonable belief) is significantly lower than the trial burden (beyond a reasonable doubt). Therefore, a magistrate or suppression judge may consider the officer's testimony that the defendant "failed" the HGN test as part of the probable cause matrix.²¹

Implication for *Ulmer*: At the suppression hearing regarding the arrest, the Commonwealth *will* be permitted to introduce the HGN results. The officer will likely testify that he observed "lack of smooth pursuit" or "distinct nystagmus at maximum deviation." Combined with the "odor of alcohol" and the alleged driving violations, this will likely be sufficient to survive a motion to dismiss the arrest for lack of probable cause, even without the WAT and OLS tests.

3.3 Defense Strategy: Attacking HGN Administration

While *Weaver* allows the evidence in, the defense can attack its *weight* by challenging the administration of the test. HGN is valid only if administered in strict compliance with NHTSA standards.

- **The Broken Ankle Factor:** While a leg injury does not directly affect eye nystagmus, the *pain* from the injury creates a physiological stress response. Defense counsel should argue that acute pain can cause distraction, inability to follow instructions, or physiological changes (such as hypertension) that might interfere with the test conditions.
- **Video Evidence:** Counsel must review bodycam footage. Did the officer hold the stimulus 12-15 inches from the nose? Did he move it at the correct speed (too fast can cause false positives)? Did he hold it at maximum deviation for the required 4 seconds? If the administration was flawed, the "probable cause" evaporates, leaving only "odor of alcohol," which Pennsylvania courts have held is insufficient *on its own* to justify an arrest.²⁴

IV. Trial Admissibility: The *Stringer* Standard and Scientific Evidence

If the case proceeds to trial, the evidentiary landscape shifts radically. The "permissive" standard of *Weaver* disappears, replaced by the strict gatekeeping of scientific evidence.

4.1 HGN as Scientific Evidence: *Commonwealth v. Stringer*

In *Commonwealth v. Stringer*, 678 A.2d 1200 (Pa. Super. 1996), the Superior Court established that HGN is **scientific evidence**, not merely observational evidence like slurred speech or staggering. The court held that a layperson (including a police officer) does not possess the knowledge to correlate involuntary eye jerking with alcohol consumption.

The *Stringer* Rule:

HGN results are inadmissible at trial unless the Commonwealth presents an adequate foundation establishing that HGN testing is generally accepted in the relevant scientific community (ophthalmology/optometry) under the Frye standard (or Pa.R.E. 702).

- **Foundation Requirement:** The arresting officer cannot provide this foundation. They are trained to *administer* the test, not to explain the underlying ophthalmological science. The Commonwealth must call an expert witness—such as a neuro-ophthalmologist or a highly credentialed DRE instructor—to lay the scientific groundwork.²⁵

4.2 Trial Strategy: The Motion in Limine

Defense counsel should file a Motion in Limine to preclude all reference to HGN testing at trial,

citing *Stringer*.

- **The Commonwealth's Dilemma:** In a misdemeanor General Impairment case, District Attorneys rarely expend the resources to hire an HGN expert. Without the expert, the HGN evidence is excluded.
- **The Resulting Evidentiary Vacuum:** If HGN is excluded (under *Stringer*) and WAT/OLS are excluded or invalidated (due to the broken ankle), the Commonwealth faces the jury with **zero** standardized field sobriety tests. The case for "General Impairment" (§ 3802(a)(1)) then relies solely on:
 1. The driving (high beams/lanes).
 2. The officer's subjective observations (odor, appearance).
 3. The Refusal (discussed below).

This evidentiary posture significantly increases the likelihood of an acquittal on the DUI charge, provided the refusal can be neutralized.

V. The Refusal and the Medical Inability Defense

The docket indicates a refusal or inability to complete breath tests. Under Pennsylvania law, this triggers both civil (license suspension) and criminal (admissibility at trial) consequences. The "broken ankle" defense is critical here, but it must be navigated through a stringent burden-shifting framework.

5.1 The Legal Definition of Refusal

Under 75 Pa.C.S. § 1547 (Implied Consent), a driver is deemed to have refused testing if they do anything less than provide an unqualified, unequivocal assent. In *Commonwealth v. Renwick*, 669 A.2d 934 (Pa. Cmwlth. 1995), the court held that failure to supply a sufficient breath sample—even if the defendant attempts to blow—constitutes a refusal.²⁸ The police officer need not "prove" the defendant was faking; the machine's failure to register a sample is prima facie evidence of refusal.

5.2 The "Medical Inability" Affirmative Defense

However, the law recognizes that some individuals are physically unable to provide a sample. Under *Department of Transportation, Bureau of Driver Licensing v. Gross*, 605 A.2d 433 (Pa. Cmwlth. 1992), and *Bureau of Driver Licensing v. Lohman*, once the Commonwealth proves the refusal (via the insufficient sample printout), the burden shifts **entirely** to the defendant to prove, by competent medical evidence, that they were physically unable to take the test.³⁰

5.2.1 The Requirement for Expert Testimony

This defense cannot be sustained by the defendant's testimony alone. Ms. Ulmer cannot simply testify, "I was in pain and couldn't breathe right." Under *Gross*, the defense must

present **expert medical testimony** linking the underlying condition (the broken ankle) to the inability to blow.

The Physiological Argument:

The defense expert (an emergency physician or pulmonologist) must testify to the following causal chain:

1. **Acute Trauma:** The broken ankle caused severe, acute pain.
2. **Sympathetic Response:** This pain triggered a "fight or flight" response, resulting in **tachypnea** (rapid, shallow breathing) or hyperventilation.
3. **Respiratory Mechanics:** The Intoxilyzer 8000/9000 requires a deep, sustained exhalation (alveolar air) of specific pressure and duration.
4. **Inability:** A patient in acute pain with tachypnea is physiologically incapable of controlling their diaphragm to provide the deep, sustained breath required by the machine.

Without this expert nexus, the "broken ankle" is legally irrelevant to the breath test refusal. With it, the refusal is negated, and the element of "consciousness of guilt" is removed from the trial.

5.3 Trial Admissibility of Refusal (*Commonwealth v. Bell*)

While the refusal carries administrative penalties, its criminal impact is defined by *Commonwealth v. Bell*, 211 A.3d 761 (Pa. 2019). The Supreme Court held that evidence of a refusal is admissible at a DUI trial to show "consciousness of guilt".³¹

- **Strategic Counter:** The defense must use the medical expert to rebut this inference. The argument to the jury is: "She didn't refuse because she was guilty; she failed because she was in agony." This reframes the "refusal" from a moral failing to a medical crisis.



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VI. Analysis of the Specific Charges and Statutory Defenses

Count 1: DUI - General Impairment (75 Pa.C.S. § 3802(a)(1))

- **Elements:** The Commonwealth must prove Ulmer operated the vehicle while rendered incapable of safe driving due to alcohol.
- **Defense:** Without BAC, FSTs (due to injury), or HGN (excluded under *Stringer*), the Commonwealth relies on *Commonwealth v. Segida*, 985 A.2d 871 (Pa. 2009), which allows conviction based on the "totality of circumstances" (erratic driving, odor, demeanor).³³
- **Counter-Attack:** The defense should argue that the "erratic driving" (lane straddling) was minor (*Gleason*) or due to the distraction of the injury. The "demeanor" (slurred

speech, stumbling) is classic behavior of someone in shock or pain from a fracture.

Counts 2 & 3: Lane Obedience (§ 3111) and High Beams (§ 4306)

- **Analysis:** As detailed in Section II, these summary offenses are the "fruit of the poisonous tree" anchors. If the stop was illegal under *Gleason* (minor lane deviation) or *Kostishak* (momentary high beams), these charges are dismissed along with the DUI evidence.
- **** Statutory Construction:**** § 3111 carries no points, whereas § 3309 does. Defense counsel should argue that charging § 3111 for a lane violation is an improper application of the statute designed for "traffic control devices" like signs and signals, not road markings which are governed by the specific lane statute § 3309.

Count 4: Duty of Operator (75 Pa.C.S. § 6308(a))

- **Elements:** Duty to exhibit license, registration, and insurance upon request.
- **Statutory Defense:** 75 Pa.C.S. § 6308(d.1) provides a specific "safe harbor." It states: "No person shall be convicted of failing to have in his possession a driver's license... if the person produces at the office of the issuing authority within 15 days of the violation... a driver's license valid in this Commonwealth at the time of the demand".⁵
- **Action Item:** If Ms. Ulmer held a valid license on Oct 26, 2025, counsel should immediately produce it to the Magisterial District Court. This mandates a dismissal of Count 4.

Table 2: Strategic Defense Matrix

Charge / Issue	Controlling Case	Defense Strategy
Stop: Lanes	<i>Com. v. Gleason</i>	Argue deviation was "momentary/minor" and on white line (not center).
Stop: Lights	<i>Com. v. Kostishak</i>	Argue flash was momentary warning (statutory exception), not sustained.
HGN (Prelim)	<i>Com. v. Weaver</i>	Prepare for officer to testify; attack <i>administration</i> (speed/height) via cross-exam.

HGN (Trial)	<i>Com. v. Stringer</i>	Motion in Limine to exclude HGN absent expert testimony (usually granted).
Refusal	<i>DOT v. Gross</i>	Retain medical expert to link ankle pain to respiratory insufficiency (tachypnea).
License (§ 6308)	75 Pa.C.S. § 6308(d.1)	Produce valid license to MDJ within 15 days (or at hearing) for dismissal.

VII. Conclusion

The defense of *Commonwealth v. Ulmer* rests on the rigorous application of Pennsylvania's specific procedural protections for motorists. The "broken ankle" is not merely a mitigating factor; it is a legal wrecking ball that potentially invalidates the standard field sobriety tests and provides a medical justification for the chemical test refusal.

However, utilizing this defense requires strict adherence to the *Gross* standard for expert medical testimony. Without an expert, the medical defense will fail as a matter of law. Simultaneously, the defense must aggressively litigate the suppression of the stop by distinguishing the facts from *Bush* (sustained high beams) and *Enick* (center line crossing), instead aligning them with *Kostishak* (momentary flash) and *Gleason* (minor fog line deviation).

If the HGN evidence is successfully excluded at trial under *Stringer*, and the refusal is contextualized by expert medical testimony, the Commonwealth's case for General Impairment DUI is significantly hollowed out, leaving reasonable doubt as the likely outcome.

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